

RESOLUTION OF SANCTIONING PROCEDURE

From the procedure instructed by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: A.A.A. (*hereinafter, the complainant) filed a complaint with the Spanish Agency for Data Protection on March 12, 2023. The complaint is directed against the COMMUNITY OF OWNERS ***COMMUNITY.1 with NIF ***NIF.1 (hereinafter, the respondent). The reasons for the complaint are as follows:

The complainant states that a video surveillance system has been installed in common areas of the Respondent Community without obtaining the majorities established by the applicable regulations to adopt the agreement for the installation of such equipment.

It also points out that the installed cameras have been used to monitor the complainant, as evidenced by a circular sent to neighbors of the Community dated February 7, 2022, indicating that there have been unauthorized accesses to the Community's video surveillance system and that it has not designated which individuals are authorized to view the content of the cameras, having submitted a request for information regarding this to the president of the Community on February 5, 2021, without receiving a response.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), this complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

On April 12, 2023, a first attempt to forward this complaint by this Agency to the respondent was made, recorded as at the indicated address, with no response received; this attempt was reiterated on May 18, 2023, with the same result, that is, no allegations were made regarding this.

THIRD: On June 12, 2023, in accordance with Article 65 of the LOPDGDD, the complaint filed by the complainant was admitted for processing.

FOURTH: On July 24, 2024, the Director of the Spanish Agency for Data Protection decided to initiate sanctioning proceedings against the respondent, in accordance with the provisions of Articles 63 and 64 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), for the alleged infringement of Article 6 of the GDPR, classified under Article 83.5 of the GDPR.

FIFTH: The aforementioned initiation agreement was notified in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), and the respondent submitted a written statement in which, in summary, it expressed the following.

FIRST.- That a video surveillance system has been installed in common areas for years, having been approved in a meeting of owners and all owners being duly informed. Minutes of the meetings held are provided:

On March 25, 2014, the following was included in the agenda (point 3a):

Therefore, this issue was expressly informed, also referring to an expansion, as there were already cameras before. There is evidence of the approval, as only 6 votes were against; the rest voted in favor of one company or another to carry out the installation, choosing the one that received the most votes.

On October 10, 2016, the following was included in the agenda (point 5.2): The installation was approved by a large majority, in accordance with current legislation.

On January 29, 2020, a point related to this matter was also included: It was approved by a large majority. On July 8, 2020, the topic of cameras was also included as a point: "Point 4, voting on the maintenance company for the antenna, video intercom, and CCTV cameras (hereinafter CCTV)." It is expressly stated:

"Therefore, since this is an agreement already approved in the meeting of owners to maintain this

CCTV, the governing board has again requested a budget for the updating of the existing ones (many of which are useless or inoperative, serving only as decoration, as they have become outdated and cannot be recovered) and their maintenance. For this reason, budgets have been requested again to install video surveillance cameras, expanding the installation of the same to the garage, as numerous vehicle thefts have been detected in recent months in the garages of communities in the area and neighboring neighborhoods. In addition to having received numerous communications that it is common practice in the community to find scratched vehicles in our garage and parts of these vehicles broken, coinciding with these vandalistic acts occurring on days following the holding of Owners' Meetings, so the installation of cameras in the garage seeks to deter the repetition of these vandalistic practices and guarantee peace of mind for all owners. ... Only 5 owners, out of the 39 owners who voted, expressed their disagreement with voting on this point regarding the maintenance of the antenna and video intercom along with the installation of CCTV in garages and common areas. Therefore, the installation of CCTV in garages and the recovery of the cameras in common areas is approved.

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SECOND.- The homeowners' association has contracted the maintenance of this service for years. On one hand, the corresponding maintenance for the exterior area and on the other, that of the garage. Copies of both are provided for the appropriate purposes. Logically, it also appears as an expense within the accounts of the community, so the homeowners are also aware of it through the accounting data they receive periodically.

SIXTH: On 19/08/24, a is issued proposing the filing of the current procedure as the commission subject to the claim has not been substantiated, as the respondent has provided documentation evidencing the lawful adoption of agreements for the installation of cameras.

From the actions taken in the present procedure and the documentation in the file, the following has been substantiated:

PROVEN FACTS

First. The facts arise from the claim dated 12/03/23, by which it is reported "installation of a video surveillance system" without having the established majorities.

Second. It is evidenced that the main responsible party for the installation of the system is the Homeowners' Association - ***COMMUNITY.1—who does not deny being responsible for the installation.

Third. A copy of the Minutes of authorization for the installation of the system has been submitted to the procedure.

Copy of the Minutes of the Extraordinary Meeting dated 25/03/2014, where it is recorded that the expansion of the security camera system in favor of the company STM Syntec was approved as a point of the with a total of 26 votes (18.5790%).

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection will be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Unfulfilled Obligation

In this case, the claim dated 12/03/23 is examined, by which the following is reported:

“installation of a camera system in the Community without having informed about it (...)”

The “facts” by this Agency will focus on determining whether the respondent has the required legal backing for the installation of the video surveillance system, without further considerations regarding the obtained with it.

The possibility of installing these video surveillance cameras is permitted as long as the agreement of the homeowners' meeting is adopted by the legally required majority and compliance with the provisions of Organic Law 3/2018 of December 5 on the Protection of Personal Data (LOPDP) and Regulation 2016/679 of April 27 regarding the protection of individuals with regard to the processing of personal data, which serves as the regulatory framework for the entire European Union.

Article 17, section 3 of the LPH (Horizontal Property Law):

“The establishment or removal of concierge, security, or other common services of general interest, whether or not they modify the constitutive title or the statutes, will require the favorable vote of three-fifths of the total number of owners who, in turn, represent three-fifths of the participation quotas.”

Therefore, it is necessary for the entire group of homeowners of the Community to be informed of the presence of cameras, by including their installation as a point on the agenda of the corresponding meeting notice.

Generally, it is the President or the Administrator who is responsible for accessing the images from the system, being responsible for reporting to the competent authorities in case of capturing any type of illicit act for the appropriate legal purposes.

Article 22.3 of the LOPDP establishes that the maximum retention period for images recorded by a security camera in the homeowners' community shall be a maximum of one month, unless the Police or security forces require the recording.

“The data will be deleted within a maximum period of one month from its capture, unless it must be retained to prove the commission of acts that threaten the integrity of persons, property, or facilities.”

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In this case, the images must be made available to the competent authority within a maximum period of seventy-two hours from the time knowledge of the existence of the recording was obtained.”

The GDPR maintains the principle that any data processing must be supported by a legitimate basis.

Article 6 letter e) of the GDPR states: Processing shall be lawful only if at least one of the following conditions is met:

e) the processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the data controller;

Thus, based on the above, the processing will be lawful, provided that the responsible party (Community of property owners) can demonstrate that it has a reliable document proving that the group of owners was informed and voted on the installation of the system in question.

III

On 16/08/24, a written response was received from the respondent, denying the illegality of the facts alleged by the claimant, by providing sufficient documentation that proves that the installed system had the legal backing of the property owners.

A record of the community of property owners is a document that records the decisions made in a meeting of owners. These decisions may include matters such as the election of a president, the approval of budgets, or the execution of works in the building.

Its regulation and functioning are set forth in Article 19 of the Horizontal Property Law.

The agreements of the meeting of property owners will be reflected in a minutes book duly registered by the Property Registrar in the manner provided by regulation.

The installed cameras had been functioning for years, with successive meetings of property owners approving matters related to the expansion of the system and its maintenance.

Article 19.3 of the LPH states: “The minutes must be signed by the president and the secretary at the end of the meeting or within ten calendar days following. From their closure, the agreements will be executive, unless the law provides otherwise.”

Thus, the agreements adopted in the meeting bind all owners, being valid and mandatory, regardless of any dissenting vote or the expression of a possible challenge, especially if not challenged within the legally established deadlines.

The principle of the presumption of innocence prevents attributing an administrative infraction when no evidence has been obtained and verified that substantiates the facts motivating the accusation or the involvement of the alleged infringer. Applying the principle "in dubio pro reo" in case of doubt regarding a specific and determined fact, which obliges in any case to resolve such doubt in the most favorable way for the interested party.

The presumption of innocence must govern without exceptions in the sanctioning system and must be respected in the imposition of any sanctions, as the exercise of the *ius puniendi* in its various manifestations is conditioned on the evidence and a contradictory procedure in which the parties can defend their positions. In this sense, the Constitutional Court in its Judgment 76/1990, of 26/04, considers that the right to the presumption of innocence entails: "that the sanction is based on acts or incriminating evidence of the reproached conduct; that the burden of proof lies with the accuser, without anyone being obliged to prove their own innocence; and that any insufficiency in the result of the evidence presented, freely evaluated by the sanctioning body, must result in an acquittal."

The presumption of innocence governs without exceptions in the sanctioning system and must be respected in the imposition of any sanction, whether criminal or administrative (TCo 13/1981), as the exercise of the sanctioning right in any of its manifestations is conditioned on the evidence and a contradictory procedure in which the parties can defend their positions.

According to this principle, no sanction can be imposed based on the guilt of the accused if there is no incriminating evidence that, in the assessment of the authorities or bodies called to resolve, destroys this presumption (TCo Auto 3-12-81).

IV

After analyzing the allegations and evidence provided by the parties, it is concluded that the system in question was duly authorized by the group of property owners of the Community, with the aim of preserving the security of the property.

Regarding access to the images of the system, it should be noted that generally, it is the President and/or the person designated for this purpose who must access the viewing of the same, and in the case of criminal conduct, must report to the competent authorities or make proportional use of them in case of to owners in the event of uncivil behavior or violations of the rules of coexistence.

It should be noted that this body is not competent to enter into considerations specific to the Horizontal Property Law, such as the alleged non-compliance with obligations by the governing bodies thereof or the

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validity or invalidity of Minutes of Owners' Meetings, which must be resolved in the appropriate judicial instances if deemed appropriate.

Therefore, in accordance with the applicable legislation, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO ORDER the FILING of the present procedure as there is no evidence of the commission of any administrative infringement within the framework of data protection.

SECOND: TO NOTIFY the present resolution to the entity COMMUNITY OF PROPERTY OWNERS

***COMMUNITY.1.

In accordance with the provisions of Article 76.4 of the LOPDGDD and given that the amount of the imposed sanction exceeds one million euros, the information identifying the infringer, the infringement committed, and the amount of the sanction will be published in the Official State Gazette.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative process in accordance with Article 48.6 of

the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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